

25NNCV04982 25NNCV04982

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C07%2F10%2F2026

Source SHA-256: 49597d694a9615015aa36f3bf829976d88edcacc5eef1ce011de2d3c23ee27da

Case Number: 25NNCV04982 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO COMPEL DEPOSITION

Hearing Date: 7/10/26

CASE NO./NAME: 25NNCV04982

Lee v. Porsche Cars North America Inc. et al.

Moving Party: Plaintiff

Prisca Lee

Responding Party: Defendant Porsche Cars North America,
Inc.

Notice: Sufficient

Ruling: DENY

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative

ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a lemon law case. On July 17, 2025, Plaintiff Prisca Lee (Plaintiff) filed the operative Complaint against defendants Porsche Cars North America, Inc. (Defendant), Rusnak Pasadena Porsche, and DOES 1-20 inclusive alleging causes of action for breach of implied and express warranty under the Song-Beverly Act.

On April 22, 2025, Plaintiff served a deposition notice to Defendant's Person Most Qualified (PMQ) regarding the nature and extent of service history on Plaintiff's vehicle, communication between parties, communication regarding the repurchase of the vehicle, and Defendant's failure to repurchase the vehicle. The depositions were set to be held on September 11, 2025. On September 2, 2025, Defendant served an objection to the deposition arguing that Defendant planned to move forward with a motion to compel arbitration. Defendant has not filed said motion to compel arbitration, and their PMK has not been deposed.

On February 5, 2026, Plaintiff filed the instant motion to compel the deposition of Defendant's employees. On June 26, 2026, Defendant filed an opposition. On July 2, 2026, Plaintiff filed a reply.

MEET AND CONFER

A motion to compel deposition "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.450, subd. (b)(2).) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

Plaintiff alleges that on September 3, 2025, they sent a meet and confer letter to Defendant regarding the PMQs. (Mot., pp. 4-5; see Wisniewski Decl., Exh. C.) Plaintiff alleges that

Defendant responded on the same day requesting a phone call to be set for September 5, 2025. (Mot., p. 5.) Plaintiff alleges that when the day came Defendant did not answer. (Ibid.) Plaintiff alleges that they left a voicemail and have since sent several follow up emails and had gotten no response as of January 27, 2026. (Ibid; see also Wisniewski Decl., Exh. D.)

Defendant's counsel declares that after Defendant served the September 3, 2025, objection, the parties mutually agreed on April 27, 2026, for the deposition. (Cowden Decl., ¶¶ 4-6.) In attempt to reschedule the April deposition for July, Defendant's counsel declares that the parties have been in communication and they intend to stay in communication. (Cowden Decl., ¶¶ 7-10; Cowden Decl., Exh. D-E.)

In reply, Plaintiff argues that Defendant did not attempt to reciprocate meet and confer efforts until two weeks after the instant motion was filed. (Reply, p. 2.) Plaintiff argues that Defendant has not been in communication since the day they filed their opposition. (Ibid.)

Defendant's evidence shows some communication between parties after January 27, 2026; however the communications are brief and do not reflect good faith efforts to meet and confer. The Communications provided consist of single date availabilities but no real effort to resolve the issue presented. Thus, Defendant has not demonstrated a good faith effort and does not satisfy the meet and confer requirement. The Court admonishes Defendant to make good faith effort in meeting and conferring in the future. Despite the failure to meet and confer, the Court is considering the motion on the merits.

LEGAL STANDARD

The Code of Civil Procedure provides: "If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 205.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice."

(Code Civ. Proc., § 2025.450, subd. (a).)

A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

(Code Civ. Proc., § 2025.450, subd. (b).)

DISCUSSION

Motion to Compel Deposition

Plaintiff argues

that they provided proper notice of the deposition to Defendant regarding their PMQ, described with sufficient particularity. (Mot., p. 6.) Plaintiff argues that Defendant has refused to provide their PMQ or a deposition date for over 5 months. (Ibid.) Plaintiff argues that Defendant is preventing Plaintiff from obtaining information through the depositions and production of documents as required by the notices of deposition. (Ibid.)

Defendant argues

that the motion is moot because Defendant has provided the date of July 9, 2026, for its PMQ to be deposed and will be producing the documents requested in the deposition notice. (Opp., p. 1.) Defendant also argues that Plaintiff's motion should be denied for lack of separate statement. (Ibid.)

Moreover, Defendant argues Plaintiff has failed to show good cause for the PMQ deposition or the instant motion. (Opp., p. 2.) Defendant argues that the deposition is just an overbroad search for information and serves nothing relevant to the case. (Ibid.)

Here, Defendant

served timely objections to Plaintiff's notice of deposition, thus there has

been no failure to appear. Code of Civil Procedure section 2025.450 subdivision (a) provides that a party may file a motion to compel a deposition absent a valid objection under Section 2025.410. (Code Civ. Proc., § 2025.450, subd. (a).) A valid written objection under section 2025.410 must be served at least three calendar days prior to the date for which the deposition is scheduled. (Code Civ. Proc., § 2025.410 (a).)

The initial notice

of deposition served on Defendant listed a deposition date of September 11, 2025. (Wisniewski Decl., ¶ 3, Exh. A.) Defendant served valid written objections to the deposition on September 2, 2025, 9 calendar days before the deposition (Wisniewski Decl., ¶ 4, Exh. B.) Plaintiff's second notice of deposition served on Defendant listed a deposition date of April 27, 2026. (Cowden Decl., ¶ 6, Exh. C.) Defendant served a valid written objection to the deposition on April 23, 2026, 4 calendar days before the deposition. (Cowden Decl., ¶ 7, Exh. D.) Thus, Defendant served timely valid written objections to Plaintiff. Defendant has provided the date of July 9, 2026, for PMQ to be deposed, showing intent to move forward with the deposition. (Cowden Decl., ¶ 8, Exh. E.) Although this date does not work for Plaintiff, the parties are encouraged to determine a date for deposition. (Cowden Decl., ¶ 9.)

Although determining a date that works for both parties has been difficult, a motion to compel deposition requires that no timely written objection has been served, and that deponent has failed to appear or move forward with the deposition. Since Plaintiff received timely objections to the depositions, and Defendant intends to move forward with the deposition, Plaintiff's motion to compel depositions under section 2025.450 is denied.

Sanctions

"If

a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Plaintiff argues

that Defendant has intentionally and willfully misused the discovery process in

their refusal to allow their PMQ to be deposed. (Mot., pp. 8-9.)

Defendant

argues that Plaintiff's motion for sanctions is improper and not warranted because the motion is moot or in the alternative must fail on its merits. (Opp., p. 7.)

Here,

sanctions are not warranted against Defendant because Plaintiff's motion to compel deposition has been denied.

CONCLUSION

AND ORDER

Plaintiff Prisca

Lee's motion to compel deposition is DENIED.

Plaintiff shall provide notice of
this order.

Hon. Victor Avila

Judge of the Superior Court